

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-01

Visual Comfort & Co.

v.

COSCO Shipping Lines Co., Ltd.

**COMPLAINANT’S MOTION
FOR CONFIDENTIAL TREATMENT**

Complainant Visual Comfort & Co. (“VCC”) hereby moves, pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) and the February 18, 2025 Order in this Proceeding, for confidential treatment of VCC’s Supplemental Brief in Support of its Claims Against COSCO Shipping Lines Co. Ltd. (“Supplemental Brief”), VCC’s Supplemental Appendix to its Supplemental Brief (“Supplemental Appendix”).

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). VCC filed its Supplemental Brief and Supplemental Appendix on April 9, 2025. None of the documents submitted contained information that VCC has an interest in keeping confidential. However, VCC’s submission did contain information that Respondent COSCO Shipping Lines Co. Ltd. (“COSCO”) designated as

Confidential pursuant to the parties' Protective Order. Accordingly, VCC made proposed redactions to its Supplemental Brief and requests confidential treatment for the indicated portions of Exhibit A and the entirety of Exhibit B. VCC has contacted COSCO's counsel to seek its position on this Motion. COSCO does not oppose VCC's redactions.

Good cause exists for the confidential treatment of the indicated information, as it is commercially sensitive information that would reveal internal operational information of the Respondent and also commercially sensitive information of third parties who are not in any way involved in the instant Proceeding.

Pursuant to the Presiding Officer's November 15, 2024 Order, VCC attaches to this motion the following exhibits:

- Exhibit A: Confidential Version of VCC's Supplemental Brief
- Exhibit B: Confidential Version of VCC's Supplemental Appendix

For the foregoing reasons, VCC respectfully requests that the information identified above be kept confidential and that the Presiding Officer accept the confidential and public versions of VCC's Supplemental Brief and Supplemental Appendix submitted herewith.

DATED: April 9, 2025

Respectfully submitted,

/s/ Jennifer M. Oliver
Jennifer M. Oliver, Esq.

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Counsel for Complainant

CERTIFICATE OF SERVICE

I certify that on the 9th of April, 2025, a true and correct copy of the foregoing Motion to Compel and Attachments were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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